

Organized Crime Prevention Act, 2014

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Amending Acts

1. Act Amending Some Nepal Acts, 2072 2072.11.13
2. Act Amending Some Acts relating to Prevention of Money Laundering and Promotion of Business Environment, 2080 2080.12.30

Act Number 12 of the year 2070

Preamble: Whereas, it is desirable to make legal provisions for preventing organized crime to maintain peace and order, to maintain law and order in the country, to investigate such crimes by adopting special techniques, to protect victims and witnesses of organized crime, and for other matters connected therewith, by ensuring the safety of life and property of the general public;

Now, therefore, the Constituent Assembly, in its capacity as the Legislature-Parliament, pursuant to Article 83 of the Interim Constitution of Nepal, 2063, has enacted this Act. Chapter-1

Preliminary

1. Short title, extent and commencement: (1) This Act may be called the "Organized Crime Prevention Act, 2070."
- (2) This Act shall apply throughout Nepal and also to any person who, while residing or staying outside Nepal, commits organized crime against Nepal or a Nepali citizen.
- (3) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-
 - (a) "Court" means the court hearing a case pursuant to Section 40.
 - (b) "Investigation Officer" means the officer investigating organized crime.
 - (c) "Authorized Officer" means the officer or body pursuant to Section 24.
 - (d) "Criminal Group" means an organized or unorganized group of three or more persons, existing within or outside Nepal, with the objective, directly or indirectly, of committing organized crime referred to in Chapter 2.
 - (e) "Prescribed" or "as prescribed" means prescribed or as prescribed by the rules framed under this Act.
 - (f) "Review Committee" means the Review Committee pursuant to Section 29.
 - (g) "Organized Crime" means the offense pursuant to Chapter 2.
 - (h) "Communication Record" means the act of recording any type of communication that occurs or has

occurred via wire, computer, or any electronic medium through electronic or any other device.

(i) "Property" means property, whether physical or non-physical, movable or immovable, tangible or intangible, and the term also includes an object or instrument of any value, any document, certificate or any other instrument establishing a right, interest or title existing or arising over such property. Chapter-2 Provisions Relating to Organized Crime

3.

Not to commit organized crime: (1) No person shall commit or cause to be committed organized crime. (2) For the purpose of subsection (1), if any person knowingly commits a serious crime for the benefit of, under the direction of, on behalf of, in concert with, or as a founding member or a member of a criminal group, he shall be deemed to have committed organized crime. (3) For the purpose of this Section, the following offenses shall be considered serious crimes:- (a) An offense punishable with imprisonment for more than three years under the prevailing law, (b) Any offense pursuant to Chapter 3, and (c) An offense considered as corruption or money laundering or financial investment in terrorist activities under the prevailing law. (4) No person shall, knowingly, by doing or omitting to do any act, participate in or assist the activities of a criminal group, or provide communication means or information technology, or provide financial assistance, or provide any means, or give shelter, conceal or help escape a person committing organized crime, in order to commit organized crime or to assist in committing organized crime for any criminal group. 4. Not to prepare, attempt, conspire, abet or be an accessory to organized crime: No person shall prepare, conspire, attempt, abet the commission of organized crime, or be an accessory to such crime. Chapter-3 Provisions Relating to Prohibited Acts and Punishment for Organized Crime 5. Not to establish a criminal group: No person shall establish or operate or cause to be operated a criminal group, or knowingly be a member of a criminal group, or make anyone a member thereof. 6.

Not to obstruct judicial proceedings: (1) No person shall obstruct or cause to be obstructed judicial proceedings by creating hindrance or obstruction in any act done or being done in the course of judicial proceedings relating to organized crime. (2) For the purpose of subsection (1), if any person commits any of the following acts, he shall be deemed to have obstructed judicial proceedings:- (a) Presenting someone as a witness to give false evidence regarding the proceedings of the case, or beating or attacking, threatening, intimidating, giving any inducement, undue pressure, or obstructing in any other manner a party, witness, or complainant in the case to give or cause to give false statements or testimony in the proceedings of the case or in the process of evidence collection, (b) Obstructing any witness from appearing in court or from collecting or presenting evidence in relation to the proceedings of the case, or (c) Beating or attacking, threatening, intimidating, giving undue inducement to, or obstructing in any manner an official involved in the administration of justice or law enforcement from performing his official duties. 7.

Not to commit destructive acts: (1) No person shall commit or cause to be committed destructive acts. (2) For the purpose of subsection (1), if any person commits any of the following acts, he shall be deemed to have committed destructive acts:- (a) Using any kind of weapons, bombs, explosives, or any other instruments or objects to disrupt the sovereignty, territorial integrity, or security or peace and order of Nepal or any part thereof, or causing damage, destruction, or vandalism to, or planning the same against, a Nepali diplomatic mission abroad or its property, or a foreign mission or the residential office of an international intergovernmental organization located in Nepal or its property, or any public or private infrastructure, structure or development project structure or its premises, or buildings, means, equipment, devices of service providers providing public services to the general public such as educational institutions, health institutions, or

transport institutions; or causing death, disability, or injury to persons at such places; or setting fire; or causing death, disability, or other harm to persons by using poisonous substances in daily consumer goods or in public places, (b) Performing any act of terrorizing the general public by spreading fear and terror in the places of their movement or gathering by committing any act referred to in clause (a), (c) For the purpose mentioned in clause (a), (b), or (c) [sic], by using or threatening to use substances mentioned in those clauses, or by using or threatening to use any other substances or means without using such substances, committing forced entry or terrorizing someone in any place or any type of vehicle, or kidnapping someone from such place or vehicle, with or without the vehicle, or terrorizing by such act, by threatening to kill, disable, injure, or cause any other type of harm, (d) For the purpose mentioned in clauses (a), (b), or (c), producing, distributing, storing, transporting, importing or exporting, selling, carrying, or installing any kind of weapons, bombs, explosives, or poisonous substances, or knowingly assisting in such acts, (e) For the purpose mentioned in clauses (a), (b), (c), or (d), forcibly collecting cash or kind, looting property. 8.

9. Punishment: A person committing the following offenses shall be punished as follows:-

(a) A person committing an offense under clauses (a) or (b) of subsection (3) of Section 3 and subsection (4) thereof, in addition to the punishment provided under the prevailing law, an additional fifty percent punishment:

Provided that there shall be no additional punishment for an offender liable to life imprisonment or a greater punishment.

(b) A person committing an offense under subsection (4) of Section 3, if no punishment provision exists in the prevailing law, imprisonment for a term up to five years or a fine up to five hundred thousand rupees or both,

(c) A person committing an offense under Section 5, imprisonment for a term up to five years and a fine up to fifty thousand rupees,

(d) A person committing an offense under Section 6, imprisonment for a term up to three years and a fine up to two hundred thousand rupees,

(e) A person committing an offense under Section 7 shall be punished as follows:-

(1) If any person has died from such offense, the principal person committing, causing, or conspiring to commit such offense, and the person ordering such offense, shall be liable to life imprisonment,

(2) If such offense has been committed but no person has died, the principal person committing, causing, or conspiring to commit such offense, and the person ordering such offense, shall be liable to life imprisonment,

(3) A person who attempts, abets, compels the commission of the offense of destructive acts, or assembles more than one person or forms a group to commit or cause the commission of such offense, or makes arrangements for doing such act, or participates in any way in such act, or produces or distributes or keeps or transports or imports or exports or in any way takes or gives or propagates or causes to be propagated weapons, bombs, explosives, or poisonous substances with the intention of committing such act, shall be liable to imprisonment from three years to ten years depending on the gravity of the offense,

(4) An accessory to the offense of destructive acts shall be liable to half the punishment prescribed for the person committing the organized crime.

(f) A person committing an offense under Section 8 shall be punished as follows:-

(1) If, with the intention of taking criminal advantage, a person threatens to kill, disable, or cause grievous hurt to another, imprisonment for a term up to seven years and a fine up to seventy thousand rupees,

(2) If criminal advantage has been taken by threatening to cause unlawful harm to anyone's business or to falsely impute the character of another, imprisonment for a term up to four years and a fine up to forty thousand rupees,

(3) In cases other than those mentioned in sub-clauses (1) or (2), if criminal advantage has been taken, imprisonment for a term up to one year and a fine up to ten thousand rupees.

10. Compensation to be recovered: (1) If any government, public, or private property is damaged by committing an offense under this Act, compensation shall be recovered from the person committing or causing the commission of such offense.

(2) For the purpose of subsection (1), while adjudicating the case, the court shall also determine the amount of compensation to be recovered under subsection (1).

(3) While determining compensation under subsection (2), the actual loss or damage caused to the property shall be the basis.

(4) The compensation determined under subsection (2) shall be paid by the offender, and if not paid, it shall be recovered by auctioning the property falling to his share.

(5) If recovery is not possible under subsection (4), imprisonment shall be imposed for the term allowed under the prevailing law on account of the fine. Chapter-4

Provisions Relating to Investigation and Prosecution

11. Officer to investigate: Notwithstanding anything contained in the prevailing law, the investigation of organized crime, other than amended by the Act Amending Some Acts relating to Prevention of Money Laundering and Promotion of Business Environment, 2080.corruption and money laundering, shall be conducted by a police employee of at least the rank of Officer. 12. Special investigation team may be formed: (1) Notwithstanding anything contained in Section 11, if it appears appropriate to form an investigation team including experts of the relevant subject matter for the investigation of organized crime, the Government of Nepal may, in consultation with the Attorney General and the Inspector General of Police, form such team.

(2) The investigation team formed pursuant to subsection (1) shall have the powers vested in the Investigation Officer under this Act or the prevailing law.

(3) After completing the investigation, the investigation team pursuant to subsection (1) shall submit the investigation report to the Investigation Officer.

(4) On the basis of the report submitted pursuant to subsection (3), the Investigation Officer shall conduct the investigation of the case and take action. 13. Special investigation methods may be adopted: (1) Notwithstanding anything contained in the prevailing law, while investigating organized crime, the controlled delivery technique, undercover investigation, and other appropriate investigation methods may be adopted as required.

Explanation: For the purpose of this Section, "controlled delivery technique" means the technique of using or transporting or moving an illegal object from one place to another under the knowledge or direct supervision of the Investigation Officer, maintaining records in the office of the Investigation Officer, with the objective of investigating organized crime or identifying persons involved in organized crime. (2) For the investigation of

organized crime, the Investigation Officer may use an informant as required. (3) The details of the informant under subsection (2) shall be kept confidential as prescribed. 14. Period of detention: Notwithstanding anything contained in the prevailing law, for the investigation of organized crime, a person accused of such crime may be detained, with the permission of the court, repeatedly up to a total of sixty days, based on the progress of the investigation. 15. Property may be attached: (1) If there are reasonable grounds to believe that a person accused of committing organized crime may transfer, sell, distribute, hide, or alter by any means the property obtained from such crime, the Investigation Officer may submit a petition to the court to order the concerned body or institution to prohibit the transfer, mortgage, pledge, sale, or distribution of such property. (2) Upon receipt of a petition under subsection (1), the court may order the concerned body or institution to prohibit the transfer, mortgage, pledge, sale, or distribution of such property. (3) After receiving an order under subsection (2), such body or institution shall immediately attach such property and inform the court and the Investigation Officer accordingly. 16. Details of transaction may be demanded or transaction or account may be frozen: (1) Notwithstanding anything contained in the prevailing law, if during the investigation of organized crime it appears that a person accused of such crime, or any family member of such person, or any person for whom there are reasonable grounds to believe that he is involved in such crime, has conducted any transaction or has an account in any bank or financial institution, the Investigation Officer may order to demand the details of such transaction or account, or with the permission of the court, to freeze such transaction or account. (2) Upon an order under subsection (1), the concerned bank or financial institution shall provide the details and freeze the transaction or account as per the order. 17.

Passport may be withheld: (1) During the course of investigation of organized crime, considering the gravity of the crime, the circumstances of its commission, the magnitude of the crime, and the punishment that may be imposed if the crime is proved, if it appears necessary not to issue a passport to the person accused of such crime, or to withhold such passport if already issued in his name, the Investigation Officer shall write to the concerned body not to issue a passport to such person, or to withhold the passport if already issued in his name. (2) Upon receiving a letter under subsection (1), the concerned body shall not issue a passport in the name of such person, and if a passport has already been issued, shall withhold such passport. 18. Details of telephone or communication may be demanded: (1) If it is found that any person has used a computer, telephone, mobile phone, or any other type of telecommunication medium, or has exchanged any type of information through electronic or any other communication medium in the course of committing organized crime, the Investigation Officer may, with the permission of the Authorized Officer, order the concerned official, body, or service provider to provide the details or information relating to such computer, telephone, mobile phone, or telecommunication medium, or the telecommunication made therefrom. (2) Upon an order under subsection (1), such official, body, or service provider shall provide the details or information relating to such telephone, mobile phone, or telecommunication medium, or the communication made therefrom. 19. Communication medium may be disabled: (1) Notwithstanding anything contained in the prevailing law, if there are reasonable grounds to believe that any person is using or is about to use a telephone, mobile phone, or any other type of telecommunication medium, or is exchanging any type of information through electronic or any other communication medium in the course of committing organized crime, the Investigation Officer may, with the permission of the Authorized Officer, order the concerned body, official, or service provider to disable such telephone, mobile phone, or communication medium, or to arrange for the phone or communication to be non-contactable. (2) Upon an order under subsection (1), such official, body, or service provider shall disable such telephone, mobile phone, or communication, or arrange for the communication to be non-contactable. 20.

To be sent to police office: amended by the Act Amending Some Acts relating to Prevention of Money

Laundering and Promotion of Business Environment, 2080.(1) If a complaint regarding organized crime is lodged with any body other than a police office, such body shall, along with the complaint regarding corruption and money laundering and any evidence collected if any, immediately send it to the concerned police office. (2) If, during an investigation conducted by a body or official authorized to investigate an offense punishable under the prevailing law, such offense appears to be organized crime, the complaint, the accused person, and the documents and collected evidence prepared in the course of the investigation shall be immediately sent to the concerned police office. Provided that, amended by the Act Amending Some Acts relating to Prevention of Money Laundering and Promotion of Business Environment, 2080.the body or official investigating cases relating to corruption and money laundering under the prevailing law shall conduct the investigation of such cases themselves. (3) Upon receipt of a complaint, accused person, documents, or evidence under subsection (1) or (2), the concerned police office shall investigate and take necessary action.

21. Discount in punishment claim may be given: (1) Notwithstanding anything contained in the prevailing law, if an accused charged with organized crime confesses his crime and assists the police, government attorney, or court in gathering evidence and arresting other accused persons or their gang or accomplices, and if he appears to have committed organized crime for the first time, a case shall be filed with a claim for a discount of up to seventy-five percent in the punishment to be imposed on him for such organized crime. (2) Notwithstanding anything contained in subsection (1), if the assistance provided by him is not proved by other evidence, or if he makes a statement before the court contrary to the assistance provided to the police or government attorney, then notwithstanding anything contained in this Act or the prevailing law, a case shall be filed again against him. (3) Notwithstanding anything contained in subsection (1), in the following circumstances, no discount in the punishment claim shall be given under this Section:- (a) To give a discount in the punishment claim to the principal accused, (b) Until the completion of three years after serving the imprisonment term in a case of organized crime, (c) If he has already availed the benefit of a discount in punishment once. 22.

25. Permission to be obtained: (1) For recording communication under Section 23, the permission of the Authorized Officer shall be obtained.

(2) To obtain permission under subsection (1), the Investigation Officer, Police Superintendent, or Officer shall submit a written application to the Authorized Officer, attaching the following details:-

(a) Name and post of the officer making the application,

(b) As far as possible, the nature of the organized crime, the place where such crime is being, has been, or may be committed, and other details related to such crime,

(c) The medium of communication to be recorded and the place of recording,

(d) The available details of the person whose communication is to be recorded.

(3) Upon receipt of an application under subsection (2), the Authorized Officer may require the applicant officer to submit further evidence.

(4) Upon receipt of an application under subsection (2), the Authorized Officer may, considering the state of the investigation and the following matters, grant permission to record communication:-

(a) If there are reasonable grounds that the organized crime mentioned in the application has been, is being, or may be committed,

(b) If there are reasonable grounds that recording communication may lead to obtaining evidence related to

the organized crime,

(c) If ordinary attempts to collect evidence have failed or appear likely to fail, or if doing so appears to be extremely risky,

(d) If there are reasonable grounds that the communication device is owned by, under the charge or control of, or is regularly used by the concerned person.

(5) Permission granted under subsection (4) may be given for a maximum of sixty days.

(6) While granting permission under subsection (4), the Authorized Officer shall specify the following matters in the permission letter:-

(a) Name, surname, residence, and other available details of the person whose communication is to be recorded,

(b) The communication medium to be recorded and the place of recording,

(c) If the body and officer recording the communication are specified, their name, post, and other details,

(d) The period for which permission to record communication is granted.

(7) While granting permission under this Section, the Authorized Officer shall ensure that the communication is recorded only by the Investigation Officer himself, or by other police personnel or the operator of the communication service under his direct instruction and supervision.

(8) While granting permission to record communication under this Section, the Authorized Officer shall order the communication service provider, or the owner or operator of such business, or other concerned person to make available the necessary technical assistance and communication service to the officer authorized to intercept such information, in a manner that does not create any hindrance to the concerned person in receiving the facility or service of the concerned institution.

(9) The proceedings or orders under this Section shall be conducted confidentially, and if any person other than the authorized person is informed or hinted in any manner about such proceedings or orders, the person doing so shall be deemed to have committed an offense under this Act as an accessory.

26. Communication may be recorded immediately: (1) Notwithstanding anything contained in Section 25, if in the course of investigation of organized crime it is necessary to immediately record the communication of a person without which it cannot be done, in the following circumstances, upon the request of the Investigation Officer, or if necessary, a Police Officer of at least the rank of Additional Inspector General of Police may, by writing the reasons and maintaining a record thereof, order the Investigation Officer or other police personnel in writing to record the communication of any person:

(a) If there is an immediate possibility of death or serious bodily injury to someone,

(b) If the national security or interest of the country is about to be adversely affected, or

(c) If there is an immediate possibility of destruction or arson of government, public, or private structures or property.

(2) When issuing an order to immediately record communication under subsection (1), the order shall be given in such a manner that the recording is done only by the Investigation Officer himself, or by a Police Officer of at least the rank of Police Inspector under his direct instruction and supervision, or by the operator

of such communication service.

(3) When issuing an order to immediately record communication under this Section, the concerned official shall be ordered to record in a manner that does not cause any hindrance to the concerned person, and the concerned communication service provider, or the owner or operator of such business, or other concerned person shall be ordered to provide necessary assistance to such official to intercept the information.

(4) The officer giving the order under subsection (1) shall submit the order so given to the Authorized Officer for approval within twelve hours of giving the order.

(5) If the Authorized Officer disapproves the order under subsection (4), he shall order the officer who gave the order to record communication, as well as the communication service provider, to immediately stop the communication record activity and to destroy all recorded communication on the same day as prescribed. 27. Record to be made without possibility of editing or alteration: (1) When recording any communication under this Chapter, such recording shall be made in a manner that it cannot be edited, tampered with, altered, or deleted.

(2) A person recording in a manner contrary to subsection (1) shall be deemed to have committed an offense under this Act as an accessory. 28.

Details to be submitted: (1) The officer who has obtained permission or order to record communication under this Chapter shall submit the details of the recorded communication to the Authorized Officer, in the manner prescribed by him, every two months in the case of recording under Section 25, and every fifteen days in the case of recording under Section 26. (2) The officer authorized to record communication under this Chapter shall submit such record to the Authorized Officer within fifteen days of the earlier of the date of completion of the communication recording activity or the expiry of the permission period. (3) The record received under subsection (2) shall be sealed and kept safely by the Authorized Officer. (4) The sealed record under subsection (3) shall be submitted at the time of filing the case in court, and shall be kept in the concerned court or police office as per the order of the court. 29. Review Committee: (1) There shall be a Review Committee as follows to review the communication recording activities:- (a) Secretary, Ministry of Home Affairs - Chairperson (b) Joint Secretary, amended by the Act Amending Some Nepal Acts, 2072. Ministry of Law, Justice and Parliamentary Affairs - Member (c) Joint Secretary, Ministry of Information and Communications - Member (2) The officer granting permission under Section 25 to record communication, or issuing an order under Section 19 to disable a telephone, mobile phone, or any other communication medium or to arrange for the phone or communication medium to be non-contactable, or issuing an order under Section 26, shall submit the details along with documents relating to such permission or order to the Review Committee on the same day as far as possible, or by the next day if not possible. (3) The Review Committee under subsection (1) shall review the permission or order so given within three days of receiving the details under subsection (2). (4) Upon review under subsection (3), if such permission or order does not appear necessary for the investigation of organized crime, the Review Committee under subsection (1) shall cancel such permission or order. (5) If the Review Committee under subsection (1) cancels the communication recording permission or order under subsection (4), it shall order the officer who gave the permission or order to immediately stop the communication recording activity and destroy the recorded communication on the same day as prescribed, or in the case of disabling a telephone, mobile phone, or any other communication medium or arranging for non-communication, to activate such phone, mobile phone, or other communication medium. (6) The Review Committee under subsection (1) shall regularly submit the details of its proceedings to the Government of Nepal. 30.

To remain confidential: The details of the recorded communication under this Chapter shall remain confidential for purposes other than the proceedings of the case of organized crime.

31. Report to be submitted: (1) The Government of Nepal shall prepare an annual report of the communication recording activities conducted under this Chapter and submit it to amended by the Act Amending Some Acts relating to Prevention of Money Laundering and Promotion of Business Environment, 2080.the Federal Parliament within thirty days of the end of each fiscal year. (2) The report under subsection (1) shall include, in addition to other matters, details relating to the following subjects:- (a) The number of applications received by the Authorized Officer for recording communication, (b) The number of permissions granted and not granted for recording communication, (c) The number of orders given for immediate recording of communication and the number of approved or disapproved orders, (d) The number of cases initiated on the basis of recorded communication and the number of cases decided on the basis of evidence obtained from communication records, (e) Other necessary matters. (3) Notwithstanding anything contained in subsection (2), if disclosing any of the details mentioned in that subsection is likely to adversely affect the security of Nepal or the prevention and suppression of organized crime, the Government of Nepal may, by stating the reason therefor, submit the report under this Section without disclosing such detail.

Chapter-6 Special Provisions Relating to Evidence

32. Provisions of this Act to apply: Notwithstanding anything contained in the prevailing law, in a case of organized crime, matters relating to evidence written in this Act shall be in accordance with this Act, and other matters shall be in accordance with the prevailing law.

33. Production may be made through audio-visual dialogue (video conference): (1) If the accused in a case of organized crime cannot be produced before the court from a security perspective, he may be produced through audio-visual dialogue. (2) In the circumstance under subsection (1), the Investigation Officer or the police office shall submit a petition to the court stating the reasons therefor. (3) Upon receipt of a petition under subsection (2), the court may, considering the condition of the accused, the place where the accused is located, and other necessary matters, order production before the court through audio-visual dialogue, and while giving such order, may also specify conditions to be complied with by the Investigation Officer or the police.

34.

May be examined through audio-visual dialogue or door: If an informant, complainant, or any witness in a case of organized crime needs to be examined, the court may examine them through audio-visual dialogue or door, or cause their testimony to be given without being seen by the accused, or examine them by changing or transforming their voice mechanically or by other means, or examine witnesses and evidence at a place other than the court.

35. Statement or testimony may be given under a fictitious or symbolic name: (1) If an informant, complainant, or witness in a case of organized crime wishes to give a statement or testimony without mentioning his name, or under a fictitious or symbolic name, the court shall allow such person to give a statement or testimony under a symbolic or fictitious name without disclosing his real name. (2) When a statement or testimony is given under subsection (1), the same name shall be mentioned in the relevant case file, order, or judgment.

36. Special provision relating to cross-examination: (1) Notwithstanding anything contained in the prevailing law, the accused shall not be allowed to cross-examine or pose any questions to an informant, complainant, or any witness in a case of organized crime. (2) Notwithstanding anything contained in subsection (1), if the court orders that such informant, complainant, or any witness may be cross-examined, the legal practitioner of the accused may cross-examine via audio-visual dialogue, or in a manner such that the accused does not see or identify the informant, complainant, or witness, and the informant, complainant, or witness does not hear what is expressed. (3) The legal practitioner conducting cross-examination under subsection (2) shall not, in any manner, reveal to anyone, including the accused, the name, surname, residence, identifying details, or characteristics of such informant, complainant, or witness. (4) The cross-examination conducted by the legal practitioner under subsection (2) shall be deemed

to have been conducted by the accused himself. (5) The legal practitioner undertaking cross-examination under subsection (2) shall, before cross-examining, take an oath before the judge in the format prescribed by the court, in writing, not to reveal in any manner the name, surname, residence, or any identifying details including three-generation details or characteristics of the person to be cross-examined to the accused or any other person. (6) Such legal practitioner shall not be allowed to ask questions or cross-examine the informant, complainant, or any witness without taking the oath under subsection (5). (7) Employees involved in the cross-examination process under this Section shall also take an oath in writing before the judge not to reveal the details under subsection (5) to any other person. 37.

Property deemed acquired by committing organized crime: If the property of a person against whom a case of organized crime has been filed appears disproportionate to his income source or economic condition, or if he leads an abnormally high standard of living, or if it is proved that he has given donations, charity, gifts, loans, contributions, or bequests beyond his means, he shall prove from what source he acquired such property, and if he fails to prove it, such property shall be deemed to have been obtained by committing organized crime. 38. Ransom may be presumed: If an accused of organized crime has, whether by kidnapping or not, or by taking hostage or not, demanded ransom from someone by correspondence, or by showing fear or threatening through telephone, mobile phone, or any other communication medium, the court may presume that he has taken ransom, except where the contrary is proved. 39. Special provision relating to evidence: (1) In a case relating to organized crime, the court may admit as evidence any evidence collected or examined by a court of a foreign country or the official body of that country. (2) The court may also admit as evidence any material or photograph containing the voice of an informant, accused, or witness recorded in a manner that cannot be edited, tampered with, or altered. Chapter-7 Provisions Relating to Jurisdiction, Punishment, and Appeal 40. Court to hear case: amended by the Act Amending Some Acts relating to Prevention of Money Laundering and Promotion of Business Environment, 2080. The jurisdiction to conduct proceedings and adjudicate cases relating to corruption and money laundering shall be with the court designated by the Government of Nepal by publishing a notice in the Nepal Gazette, and the jurisdiction to conduct proceedings and adjudicate other cases relating to organized crime shall be with the concerned District Court. 41. Trial may be conducted by keeping in custody: If there are reasonable grounds that the accused in a case of organized crime may destroy or tamper with evidence, or that such accused may abscond, the court may, notwithstanding anything contained in the prevailing law, order the trial of the case by keeping such accused in custody. 42.

Proceedings and hearing may be conducted in camera: (1) If a petition is filed requesting that the proceedings and hearing of a particular type of case relating to organized crime be conducted in camera, or if the court itself deems it appropriate and orders so, the proceedings and hearing of such case shall be conducted in camera. (2) When the proceedings and hearing of a case are conducted in camera under subsection (1), only the parties to the case, their legal practitioners, and persons permitted by the court may enter such chamber. 43. Punishment for unlawful communication recording: If any person records communication contrary to this Act, he shall be liable to imprisonment for a term up to three years and a fine up to one hundred thousand rupees. 44. Punishment for disclosing details: If any person discloses the details of an informant, complainant, or witness, or a record, contrary to Section 43 [sic], he shall be liable to imprisonment for a term up to five years and a fine up to five hundred thousand rupees. 45. Punishment for not freezing transaction or account or not providing details: (1) The chief of a bank or financial institution who fails to freeze a transaction or account as per the request made under Section 16 shall be liable to imprisonment for a term up to one year or a fine up to fifty thousand rupees. (2) A communication service provider or operator who fails to provide details under Section 18 or to disable the communication medium

under Section 19 shall be liable to imprisonment for a term up to one year or a fine up to fifty thousand rupees. 46. Punishment for a public servant: A public servant who fails to comply with an order of a court or a superior officer in the course of investigation or trial of organized crime shall be deemed to have committed an offense under subsection (4) of Section 3, and such public servant shall be punished under clause (a) of Section 9. Provided that if there is no provision of punishment in the prevailing law, such public servant shall be punished under clause (b) of Section 9. 47.

Punishment for destroying evidence: If a person accused or charged with organized crime, or (3) If a petition has been filed in the court pursuant to subsection (2), the court may order the concerned body to make arrangements for the protection of such witness, and if a petition has been filed with the police, the concerned police office shall provide security to such person or the members of his/her family. (4) For the protection of the complainant, witness or members of his/her family pursuant to this section, the identifying details including the name, surname, and address of such person shall be kept under a fictitious or code name, and the court may order that the details and case-related records it deems appropriate be kept confidential or that only the part of the case records excluding the witness's details be made public. (5) For the protection of the complainant or witness or members of their family pursuant to this section, the court may order that the details and case-related records it deems appropriate be kept confidential or that only the part or portion of the case records excluding the witness's details be made public. (6) No question shall be raised in any court regarding any matter adopted in relation to the protection of an informant, complainant or witness pursuant to this section. 54. May keep interpreter or translator: If the language used in the proceedings of a case of organized crime is not understood by the accused, he/she may keep an interpreter or translator with the permission of the court. 55. Provide legal aid: If the accused in a case of organized crime is unable to appoint a legal practitioner, the court shall provide a paid legal practitioner for him/her. 56. May keep separate legal practitioner: If a person victimized by organized crime wishes to be represented through a separate legal practitioner during the course of the trial of the case of organized crime, he/she may keep such legal practitioner. 57. May convert the case: (1) If, while examining evidence in a case filed as organized crime, it appears that such case is not required to be proceeded with and disposed of under this Act, notwithstanding anything contained in the prevailing law, the court may convert such case into a case under the prevailing law and render a verdict. (2) In case a verdict is rendered after converting the case pursuant to subsection (1), the government attorney shall be given a period of seventy days for appeal. 58.

Limitation period not applicable: No limitation period shall apply for prosecuting a case of organized crime. 59. Government party: A case of organized crime shall be a government party, and except for cases relating to corruption, money laundering and financial investment in terrorist activities, other cases shall be deemed to be included in Schedule-1 of the National Criminal Procedure Code, 2074, as amended by the Act to Amend Some Nepal Acts, 2075, which was transformed by the Act to Amend, Consolidate, Harmonize and Repeal Some Nepal Laws, 2074. 60. Reward to be given: (1) A reward equal to twenty percent of the fine imposed on the person committing such offense shall be provided to a person who gives information that any act deemed to be organized crime has been committed or is about to be committed, and who assists in arresting the person committing or causing to commit such offense or in the investigation work. (2) If there is more than one person giving information pursuant to subsection (1), such amount shall be given to them in equal proportion. 61. Protection for acts done in good faith: Notwithstanding anything contained elsewhere in this Act, if any act deemed to be organized crime under this Act occurs while performing one's official duty in good faith in accordance with the prevailing law, no government official shall be prosecuted or subjected to any other kind of punishment under this Act for such act. 62. Power to make rules: The Government of Nepal may make necessary rules for the implementation of this Act.